

25NWLC67769 25NWLC67769

County: los-angeles

Division: Civil Law and Motion

Department: Y

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Case Number: 25NWLC67769 Hearing Date: September 24, 2026 Dept: Y

25NWLC67769: LVNV FUNDING LLC vs DERRICK GREINER

Tentative Ruling:

The Court has read and considered Defendant Derrick Grenier's ("Defendant") Motion to Quash Service of Summons ("Motion"), including the supporting declaration. Defendant filed and served its Motion on August 17, 2026 along with a Proof of Service by mail on Plaintiff LVNV Funding, LLC ("Plaintiff").

The Motion was initially set for hearing on September 9, 2026. The Court continued the Motion to September 24, 2026 so that proper notice of the Motion could be provided to Plaintiff. No opposition has been filed by Plaintiff.

Defendant specially appears and moves to quash service of summons pursuant to Code of Civil Procedure § 418.10. Defendant argues that he was not properly served in compliance with the law.

Evidence Code § 647 creates a rebuttable presumption of valid service when, as here, a registered process server files a Proof of Service with the Court. The individual questioning the validity of service must present sufficient evidence to demonstrate that service did not occur as stated in the Proof of Service. Evid. Code §§ 647, 660.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on August 12, 2026 creating a presumption of service under Evidence Code section 647. The Proof of Service indicates personal service on March 9, 2026 at 6:42 p.m. at "5122 ¾ Hayter Ave, Lakewood, CA 90712." The process server stated that the identity was confirmed "by neighbor" and the individual served tried to refuse service by not opening the door. The documents were left. The person served was described as a Black male, Age: 55-65, Height: 5'6"-5'8", Weight: 120-140 lbs.

Defendant's declaration, which was signed under penalty of perjury, states that he is not the person described in the Proof of Service. He is a white male who is approximately 6'1" tall and weighs 275 to 280 pounds. He states that he was not personally served with the Summons and Complaint and found them attached to his front door when he returned to his residence on March 9, 2026. The Court finds that Defendant has rebutted the presumption of personal service.

Having considered the moving papers, Defendant's Motion to Quash Service of Process is GRANTED.

Clerk to give notice.